

25NNCV07451 25NNCV07451

County: los-angeles

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Case Number: 25NNCV07451 Hearing Date: August 14, 2026 Dept: B

Hon. Victor Avila, Dept B

MOTION to Strike Answer

Hearing Date: 8/14/26

CASE NO.: 25NNCV07451

CASE NAME: Cardenas v. Payne

Moving Party: Plaintiff Lizbeth Cardenas

Responding Party: Defendant Jason Payne

Notice: Sufficient

Ruling:

GRANT, with leave to amend.

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 4:00 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

This is a domestic dispute action. On October 22, 2025, Plaintiff Lizbeth Cardenas (Plaintiff) filed a verified Complaint against defendant Jason Payne (Defendant) alleging trespass, intentional infliction of emotional distress, and abuse of process. On December 15, 2025, Defendant filed his original answer.

On April 3, 2026, the Court granted Plaintiff's motion to strike Defendant's original answer on the grounds that Defendant provided general denials, which is improper in response to a verified Complaint. On April 22, 2026, Defendant filed an amended answer.

On May 4, 2026, Plaintiff filed the instant motion seeking to strike Defendant's amended answer on the same grounds as the original answer. On August 3, 2026, Defendant filed an opposition. On August 7, 2026, Plaintiff filed a reply.

LEGAL STANDARD

The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc., § 437(a).) Where a paragraph contains multiple factual allegations or distinct propositions, a responding party may not simply admit or deny the paragraph as a whole if doing so would obscure which parts are true and which are disputed. Instead, the party must specifically admit or deny the separate branches of the allegation. If the paragraph embraces several clauses or propositions, each material subpart must be addressed separately and disjunctively, or the denial is evasive and insufficient. (*More v. Del Valle* (1865) 28 Cal. 170, 172.)

DISCUSSION

Plaintiff argues

that Defendant's answer must be stricken because Defendant failed to correct the answer and again uses grouped admissions and denials listed by paragraph and sentence rather than specifically identifying which facts are wholly or partially admitted and denied. (Mot., p. 4.) Plaintiff argues the format of the amended answer is simply a more granular version of the original insufficient answer and does not contain clear responses. (Mot., p. 8.) Further, Plaintiff argues that Defendant failed to file proof of service with the amended answer. (Mot., p. 4.)

In opposition,

Defendant argues that this lawsuit is a continuation of a family law dispute and that there are no true factual allegations. (Opp., 2.) Further, Defendant argues that he has answered with specific denials, pursuant to Code of Civil Procedure section 431.30, and that is all that is required. (Ibid.) Further, Defendant argues that all allegations have been addressed and there are no material sub parts to be addressed. (Ibid.)

In reply, Plaintiff's

argues that Defendant's opposition confirms the defect identified in the instant motion. (Reply, p. 2.) Plaintiff also reiterates that Defendant's amended answer is only a more granular version of the original answer which was struck. (Reply, p. 3.) Further, Plaintiff argues that Defendant's reliance on section 431.30, which permits denials by reference to specific paragraphs or parts of a complaint, does not authorize evasive collective denials just because they appear in the same sentence. (Reply, p. 4.) Moreover, Plaintiff argues that the Family Law case is irrelevant to the pleading defect at issue. (Reply, p. 5.) Plaintiff requests that in light of repeated insufficient answers and failure to effectuate service of the amended answer, the motion be granted without leave to amend. (Reply, pp. 5-6.)

Here, as

previously stated by the Court, paragraphs in the Complaint contain multiple factual subparts. (4/3/26 Minute Order.) Although Defendant slightly narrowed the scope of admissions and denials, Defendant does not sufficiently respond to each allegation in the amended answer. As explained in *More v. Del Valle*, Defendant cannot simply deny a paragraph as a whole but must admit whole but separate branches of the allegation specifically. (Ibid.) The concern is that Defendant may deny an entire paragraph containing multiple allegations based on the falsity of only one subpart, even though one or more other

subparts may be true. (4/3/26 Minute Order.) The Court already identified these insufficiencies in the original answer and Defendant failed to correct them in the amended answer. Further, Defendant's amended answer does not contain proof of service and Defendant did not subsequently file proof of service of the amended answer on Plaintiff.

Accordingly, the motion to strike Defendant's answer is GRANTED. Defendant is afforded leave to amend once more, within 20 days from this date.

CONCLUSION
AND ORDER

Plaintiff Lizbeth Cardenas' motion to strike Defendant's Answer is GRANTED.

Defendant is given leave to amend within 20 days from this ruling.

MOVING PARTY shall provide notice and provide a proposed order consistent with this ruling within 5 days from this date.